U.S. Citizenship and Immigration Services

MENU

7.4.1 Exchange Visitors (J-1)

Exchange visitors may work in the United States if the work is part of the participants' approved program (for example, J-1 teachers, professors, summer camp counselors, summer work travel, au pairs) or when the official program sponsor approves their employment (for example, J-1 students). Employers may not employ a J-1 participant knowing that the exchange visitor is performing work outside of their approved program.

The Department of State (DOS) administers exchange visitor programs and designates the sponsors. Program sponsors issue Form DS-2019, Certificate of Eligibility for Exchange Visitor (J-1) Status to participants. Exchange visitors come to the United States for a specific period of time to participate in a particular program or activity, as described on their Form DS-2019. Only J-1 exchange visitors with employment authorized under the terms of their program may use Form DS-2019 as documentation when completing Form I-9.

Currently, DOS designates public and private entities to act as exchange sponsors for the following programs.

Exchange Visitor Programs

- Professors and research scholar
- Short-term scholars
- Trainees and interns
- College and university students
- Teachers
- Secondary school students
- Specialists
- Physicians
- International visitors
- Government visitors
- Camp counselors
- Au pairs
- Summer work travel

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Memorandum of Understanding (MOU) Programs

- Summer work/travel: Australia and New Zealand
- WEST (Work/English Study/Travel): South Korea
- Intern work/travel: Republic of Ireland
- Intern/trainee (Innovative Programs): Portugal
- Intern program (Sciences, engineering, architecture, mathematics, and industrial occupations) Mexico

High school or secondary school students and international visitors are not authorized to work.

Responsible officers may authorize other J-1 students for part-time on-campus employment according to the terms of a scholarship, fellowship, assistantship, or off- campus employment based on serious, urgent, or unforeseen economic circumstances. Responsible officers may also authorize J-1 students for a maximum of 18 months (or, for Ph.D. students, a maximum of 36 months) of practical training during or immediately after their studies. J-1 practical training includes paid off- campus employment and/or unpaid internships that are part of the student's program of study. Their responsible officer must authorize employment in writing for practical training. Special rules apply to student interns.

Employment for other J-1 exchange visitors is sometimes job- and site-specific or limited to a few months.

For more information about these categories and their employment authorization, contact the responsible officer whose name and telephone number are on the employee's Form DS-2019 or go to the DOS website at j1visa.state.gov.

DHS issues exchange visitors Forms I-94 indicating J-1 nonimmigrant status. DOS-designated program sponsors issue Form DS-2019 endorsed by a responsible officer, which indicates the type of work an exchange visitor is authorized to perform. For J-1 students, the responsible officer prepares additional informal documentation (a letter) that verifies employment authorization.

The J-1 exchange visitor must enter the DS-2019 Program End Date in Section 1 as the date employment authorization expires. A J-1 student must enter in Section 1 the end date from their responsible officer letter authorizing employment or the program end date on the DS-2019 if issued for academic training.

In Section 2, you may enter:

- A List A document, including the combination of: A foreign passport;
- Form I-94 indicating J-1 nonimmigrant status; and
- Form DS-2019 with the responsible officer's endorsement.
    - Enter the Student and Exchange Visitor Information System (SEVIS) number as the document number and the program end date as the document expiration date.

- A J-1 student must also provide a letter from the responsible officer. Enter the document information in the Additional Information field.

or

List B and C documents:

- For example, a state driver's license (List B) and a Form I-94 indicating J-1 nonimmigrant status with a properly endorsed Form DS-2019 (List C #7).
  - Enter the SEVIS number as the document number and the program end date as the expiration date.
- A J-1 student must also provide a letter from the responsible officer. Enter the information in the Additional Information field.

If the J-1 exchange visitor transfers to a different program or changes their sponsor, their Form DS-2019 must indicate the new program or sponsor.

Some exchange visitors may extend their status. If you have questions about any exchange visitor's continued employment authorization, contact the responsible officer whose name and telephone number are listed on the employee's Form DS-2019.

Dependents of a J-1 exchange visitor are classified as J-2 nonimmigrants and are only authorized to work if USCIS issued an EAD to them. A J-2 nonimmigrant's foreign passport and Form I-94 are not evidence of identity and employment authorization for Form I-9 purposes.

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